

12_Annex_C_SSI_Handling

ALDRIDGE HARBOR PORT AUTHORITY

KESSLER POINT MARINE TERMINAL — PERIMETER SECURITY, ACCESS CONTROL AND SURVEILLANCE SYSTEMS

DOCUMENT 12 OF 13 — ANNEX C: SENSITIVE SECURITY INFORMATION HANDLING

Solicitation Number	AHPA-2026-IFB-0417
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SENSITIVE SECURITY INFORMATION — 49 CFR PART 1520

1. BASIS

C-1.1 Sensitive Security Information (SSI) is information the disclosure of which would be detrimental to transportation security, as defined at **49 CFR § 1520.5**.

C-1.2 The following records generated or received under this solicitation are SSI:

Record
The Facility Security Plan and any amendment to it
The Facility Security Assessment
Any vulnerability assessment
Drawings showing the location of security devices, detection zones, cameras or access control points
Camera field-of-view calculations and coverage plans
The Contractor’s design submissions
Penetration test reports and vulnerability reports
Records of security system faults, outages and compensating measures
Details of MARSEC escalation procedures
This Annex and Documents 4, 5, 6, 10 and 13 of this solicitation

C-1.3 A Bidder or Contractor in receipt of SSI is a **covered person** within the meaning of **49 CFR § 1520.7** and is subject to the duties at 49 CFR §§ 1520.9, 1520.11, 1520.13 and 1520.15.

2. NON-DISCLOSURE

C-2.1 The Bidder shall execute the Non-Disclosure Agreement appended to this Annex before any SSI is released.

C-2.2 The Bidder shall not disclose SSI to any person other than a covered person with a **need to know**, as that term is used at 49 CFR § 1520.11.

C-2.3 The Bidder shall maintain a register of every person to whom SSI has been disclosed, recording name, employer, role, date of disclosure and the records disclosed. The register shall be produced to the Authority on request.

C-2.4 Disclosure to a subcontractor requires the Authority’s prior written approval and the subcontractor’s execution of the Non-Disclosure Agreement.

3. MARKING

C-3.1 Every record containing SSI shall be marked in accordance with **49 CFR § 1520.13** with:

- the protective marking “**SENSITIVE SECURITY INFORMATION**” at the top of each page, and
- the distribution limitation statement at the bottom of each page:

WARNING: This record contains Sensitive Security Information that is controlled under 49 CFR parts 15 and 1520. No part of this record may be disclosed to persons without a “need to know”, as defined in 49 CFR parts 15 and 1520, except with the written permission of the Administrator of the Transportation Security Administration or the Secretary of Transportation. Unauthorized release may result in civil penalty or other action. For U.S. government agencies, public disclosure is governed by 5 U.S.C. 552 and 49 CFR parts 15 and 1520.

C-3.2 Electronic records shall carry the marking within the document and in the file name.

C-3.3 Where a record contains both SSI and non-SSI material, the whole record shall be marked and handled as SSI unless the SSI is segregated.

4. STORAGE AND TRANSMISSION

C-4.1 SSI in physical form shall be stored in a locked container when not under the control of a covered person.

C-4.2 SSI in electronic form shall be stored on systems under the Contractor’s control, protected by access control and encryption at rest, and **located within the United States**.

C-4.3 SSI shall not be stored on personal devices, personal cloud accounts or consumer file-sharing services.

C-4.4 SSI shall be transmitted only by a means approved in writing by the Authority. Approved means are: the Authority’s secure file transfer portal; encrypted electronic mail using a method agreed with the Authority; and hand delivery by a covered person.

C-4.5 SSI shall not be transmitted by unencrypted electronic mail, facsimile, or unencrypted portable media.

C-4.6 SSI shall not be discussed in a public place or over an unsecured channel.

C-4.7 SSI shall not be posted to any website, repository or collaboration platform not approved by the Authority.

5. REPRODUCTION AND DISPOSAL

C-5.1 Reproduction of SSI shall be limited to the minimum necessary. Each copy shall be marked and registered.

C-5.2 SSI in physical form shall be destroyed by cross-cut shredding to a particle size not exceeding 1 mm × 5 mm, or by incineration.

C-5.3 SSI in electronic form shall be destroyed by a method meeting NIST SP 800-88 for the media concerned.

C-5.4 An unsuccessful Bidder shall destroy all SSI within **thirty (30) days** of notification of the outcome and shall certify destruction to the Authority.

C-5.5 On completion or termination of the Contract, the Contractor shall return or destroy all SSI and shall certify the same within thirty (30) days.

6. INCIDENTS

C-6.1 The Contractor shall notify the Authority within **twenty-four (24) hours** of becoming aware of any actual or suspected unauthorised disclosure, loss, theft or compromise of SSI.

C-6.2 The notification shall state what was disclosed, to whom, when, the circumstances, and the action taken.

C-6.3 The Contractor shall cooperate fully with any investigation by the Authority, the Transportation Security Administration or the United States Coast Guard.

C-6.4 Unauthorised disclosure of SSI may result in a civil penalty under 49 U.S.C. § 46301 and constitutes a material breach of the Contract.

7. PERSONNEL

C-7.1 The Contractor shall nominate in writing those of its personnel requiring access to SSI, stating the need to know of each.

C-7.2 The Contractor shall satisfy itself as to the suitability of each such person.

C-7.3 Each such person shall be briefed on the obligations of this Annex before receiving SSI, and shall acknowledge the briefing in writing.

C-7.4 The Contractor shall notify the Authority when any person with access to SSI leaves the project or the Contractor’s employment, and shall confirm the return or destruction of SSI held by that person.

APPENDIX — NON-DISCLOSURE AGREEMENT

To be executed by an authorised signatory of the Bidder.

The undersigned, on behalf of the Bidder, acknowledges that:

1. The Bidder has been or will be given access to Sensitive Security Information as defined at 49 CFR § 1520.5 in connection with solicitation AHPA-

2026-IFB-0417.

- 2. The Bidder is a covered person within the meaning of 49 CFR § 1520.7 and accepts the duties imposed by 49 CFR Part 1520.
- 3. The Bidder will restrict access to SSI to persons with a need to know and will maintain the register required at C-2.3.
- 4. The Bidder will mark, store, transmit, reproduce and destroy SSI in accordance with this Annex.
- 5. The Bidder will notify the Authority of any actual or suspected compromise within twenty-four hours.
- 6. The Bidder understands that unauthorised disclosure may result in civil penalty and may constitute a material breach of any resulting contract.
- 7. These obligations survive the conclusion of the procurement and of any resulting contract.

Bidder	
Signatory name	
Position	
Signature	
Date	

END OF DOCUMENT 12